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BACKGROUND

This case is a wage and hour matter. Plaintiff Anthony Ricardo Beltran was employed by Defendants Kam's Automotive, Inc., Kamyar Najmi, Faramarz Najmi, and Kam's Property, LLC. Plaintiff alleges that Defendants failed to provide necessary meal and rest breaks. Accordingly, Defendants also allegedly failed to pay premium pay for these missed breaks.

On May 1, 2024, Plaintiff filed a complaint against Defendants. The complaint alleges seven causes of action stemming from the facts alleged above.

On April 17, 2026, Defendants filed a Motion for Summary Judgment ("MSJ").

On June 17, 2026, Plaintiff filed an opposition.

On June 29, 2026, Defendants filed a reply.

TENTATIVE RULING

Defendants' Motion for Summary Judgment is DENIED.

LEGAL STANDARD

In reviewing a motion for summary judgment, courts must apply a three-step analysis: "(1) identify the

issues framed by the pleadings; (2) determine whether the moving party has negated the opponent's claims; and (3) determine whether the opposition has demonstrated the existence of a triable, material factual issue." (Hinesley v. Oakshade Town Center (2005) 135 Cal.App.4th 289, 294.)

"[T]he initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact." (Scalf v. D. B. Log Homes, Inc. (2005) 128 Cal.App.4th 1510, 1519.) A defendant moving for summary judgment or summary adjudication "has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action." (Code Civ. Proc., § 437c, subd. (p)(2).)

A moving defendant need not conclusively negate an element of plaintiff's cause of action. (See Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 854.) Instead, to meet this burden of showing a cause of action cannot be established, a defendant must show not only "that the plaintiff does not possess needed evidence", but also that "the plaintiff cannot reasonably obtain needed evidence." (Ibid.) It is insufficient for the defendant to merely point out the absence of evidence. (See Gaggero v. Yura (2003) 108 Cal.App.4th 884, 891.) The supporting evidence can be in the form of affidavits, declarations, admissions, depositions, answers to interrogatories, and matters of which judicial notice may be taken. (See Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 855.)

"Once the defendant . . . has met that burden, the burden shifts to the plaintiff . . . to show that a triable issue of one or more material facts exists as to the cause of action or a defense thereto." (Code Civ. Proc., § 437c, subd. (p)(2).) The plaintiff may not merely rely on allegations or denials of its pleadings to show that a triable issue of material fact exists, but instead, "shall set forth the specific facts showing that a triable issue of material fact exists as to the cause of action." (Ibid.) "If the plaintiff cannot do so, summary judgment should be granted." (Avivi v. Centro Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.)

DISCUSSION

I.

Failure

to Provide Meal Periods (Cause of Action No. 1)

The Court finds that Plaintiff

has put forth evidence to create triable issues of material fact as to whether the Driver Logs are reliable and if he worked through his meal periods.

Accordingly, Plaintiff has also created triable issues of material fact as to whether Defendants were aware that off-the-clock work was occurring and that Plaintiff had missed meal breaks.

Employers have an

obligation to authorize and to provide legally required meal and rest

breaks. (See *Benton v. Telecom Network Specialists, Inc.* (2013)

220 Cal.App.4th 701, 728.) Employer liability for uncompensated

work only rises when the employer knew or should have known that off-the-clock

work was occurring. (See *Brinker Restaurant Corp. v. Superior Court*

(2012) 53 Cal.4th 1004, 1051-52).

A.

Time

Records

When time records show

that employees are clocked out, it creates a rebuttable presumption that they

are doing no work. (See *id.* at p. 1051.) On the flip side, “If time

records show noncompliant meal periods, then a rebuttable presumption of [employer]

liability arises. This presumption applies at the summary judgment

stage, and the employer may rebut the presumption with evidence of bona fide

relief from duty or proper compensation.” (*Donohue v. AMN Servs., LLC* (2021)

11 Cal.5th 58, 78.)

Here, Plaintiff manually

tracked and logged his working hours via a Driver Daily Log Sheet (“Driver

Log”). (DUMF No. 9.) Plaintiff also tracked and logged his meal breaks via the

Driver Log. (DUMF Nos. 19-23.) At the end of his shift, Plaintiff would print, sign,

and turn in his Driver Log attesting to the hours worked and breaks taken. (DUMF

Nos. 24-25.)

Given these Driver Logs, Defendants assert that they believed Plaintiff took all necessary meal breaks during his entire employment tenure. (See MSJ, p. 11:22-23; DUMF No. 28.) Therefore, they had no actual or constructive knowledge that off-the-clock work was occurring or that Plaintiff had missed meal breaks. (See id. at p. 11:26-27; see also *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1051-52).

However, there is evidence disputing whether the Driver Logs are accurate and whether Defendants knew about said inaccuracies. For instance, Defendants' Person Most Knowledgeable witness (Kamyar) testified that Plaintiff was "making up numbers" when filling out the Driver Logs and that said Logs did not accurately reflect when Plaintiff took his meal breaks. (PUMF, Nos. 17-20.) Plaintiff also testified that he would inaccurately fill out the Driver Logs just so they can "make sense" and to satisfy management. (PUMF Nos. 23, 25-26, 28.) Other employees also testified that the Driver Logs were inaccurate reflections of whether necessary meal breaks were taken. (PUMF Nos. 61-62, 67, 70, 72, 75.) Taken together, this testimony raises a triable issue as to the reliability of the Driver Logs and whether Defendants knew or should have known about said inaccuracies

The Court recognizes that Kamyar also testified that, despite the inaccuracies in the Logs, Plaintiff still took his meal breaks. (PUMF, Nos. 17-20.) However, in a motion for summary judgment, the Court cannot weigh the veracity of testimony. That task is left for a jury of reasonable peers.

In short, Plaintiff has put forth evidence creating a triable issue of material fact as to whether the Driver Logs are accurate and whether Defendants knew or should have known about such inaccuracies.

B.

Working

Through Meal Breaks

Plaintiff also presents evidence disputing whether Plaintiff worked during any meal breaks he was able to take. For instance, Plaintiff testified that there were times when he could not take his necessary

breaks because he was inundated with calls. (PUMF Nos. 29-31.) Plaintiff also testified that there were times when Defendants interrupted his breaks by ordering him to respond to a call. (PUMF Nos. 33-35.) Other employees also provided similar testimony. (PUMF Nos. 56-57, 63, 68, 71, 76.) Taken together, this testimony raises legitimate questions about whether Plaintiff was required to work during his meal breaks and if Defendants knew or should have known about this off-the-clock work.

In reply, Defendants invoke the sham pleading doctrine and contend that Plaintiff's testimony cannot create a triable issue of material fact because it contradicts his own signed Driver Logs, payroll acknowledgment sheets, and end-of-employment declaration. (See Reply, pp. 2:22-3:7 [citing *Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510].) However, the sham pleading doctrine only applies to prior sworn testimony, not other signed documents. (See *Scalf v. D.B. Log Homes, Inc.* (2005) 128 Cal.App.4th 1510, 1522 ["In a nutshell, the rule bars a party opposing summary judgment from filing a declaration that purports to impeach his or her own prior sworn testimony."].) Defendant is correct that Plaintiff's deposition testimony "cannot erase years of contemporaneous sworn certifications (reply at 3), that does not mean that Plaintiff's testimony cannot create a triable issue of fact. (See *ibid.*) A jury will have to decide whether Plaintiff's explanation for any inconsistencies with prior signed documents is credible or not.

In sum, Plaintiff has put forth evidence creating triable issues of material fact as to whether the Driver Logs are reliable and if he was required to work during his meal periods. Plaintiff has also put forth evidence creating triable issues of material fact as to whether Defendants knew or should have known about the Driver Log's inconsistencies and Plaintiff's off-the-clock work. (See *Brinker Restaurant Corp. v. Superior Court* (2012) 53 Cal.4th 1004, 1051-52). For these reasons, Plaintiff has met his burden, and summary adjudication for this cause of action shall be denied. (See Code Civ. Proc., § 437c, subd. (p)(2).)

II.

Failure

to Provide Rest Periods (Cause of Action No. 2)

The Court finds that

Plaintiff has put forth evidence to create triable issues of material fact as

to whether the Driver Logs are reliable and if Plaintiff actually took legitimate rest breaks. Accordingly, Plaintiff has also created triable issues of material fact as to whether Defendants knew about or should have known about the alleged Driver Logs' inconsistencies and failure to provide official rest breaks.

Wage Order Number 5, subdivision 12 provides in relevant part: ""Every employer shall authorize and permit all employees to take rest periods, which insofar as practicable shall be in the middle of each work period. The authorized rest period time shall be based on the total hours worked daily at the rate of ten (10) minutes net rest time per four (4) hours or major fraction thereof. However, a rest period need not be authorized for employees whose total daily work time is less than three and one-half (3 1/2) hours."

"No issue of waiver ever arises for a rest break that was required by law but never authorized; if a break is not authorized, an employee has no opportunity to decline to take it." (Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1033.) On the flip side, once an employer authorizes an employee to take a rest break, the employer is not obligated to ensure said rest breaks are taken by the employee. (See Koval v. Pacific Bell Telephone Co. (2014) 232 Cal.App.4th 1050, 1058.)

Employer liability for uncompensated work only rises when the employer knew or should have known that off-the-clock work was occurring. (See Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1051-52).

Once again, Defendants contend that Plaintiff was given all necessary rest breaks as evidenced by the Driver Logs. (See MSJ, p. 13:19-23.) Therefore, they assert they had no actual or constructive knowledge that Plaintiff was purportedly working off-the-clock or that he had missed rest breaks. (See *id.* at p. 13:16-17; see also Brinker Restaurant Corp. v. Superior Court (2012) 53 Cal.4th 1004, 1051-52).

However, as demonstrated in the prior section, there is a triable issue of material fact as to whether the Driver Logs are reliable and whether Plaintiff was actually able to take any legitimate rest breaks. (See PUMF, Nos. 17-20, 38-41, 56-57, 61-63, 67, 68,

70-72, 75-76; see also § I.) Furthermore, there is also triable issue of material fact as to whether Defendants knew or should have known about the Driver Logs' asserted inconsistencies and the failure to provide official rest breaks. (See PUMF, Nos. 17-20, 38, 44; see also § I.) Accordingly, for similar reasons as the prior section, Plaintiff has met his burden, and summary adjudication for this cause of action is denied. (See Code Civ. Proc., § 437c, subd. (p)(2).)

III.

Failure

to Reimburse Work-Related Expenses (Cause of Action No. 3)

The Court finds that Plaintiff

has put forth evidence to create a triable issue of material fact as to whether he was required to purchase tools and equipment for his job for which he was allegedly not reimbursed.

Labor Code section

2802 obligates employers to fully reimburse employees'

necessary business expenses incurred in performing job duties or following employer directions. (*Gattuso v. Harte-Hanks Shoppers, Inc.* (2007) 42 Cal.4th 554, 572.)

Here, there is conflicting

evidence as to whether Plaintiff was required to purchase a lockout kit for his employment with Defendants. Defendants contend they provided Plaintiff with all necessary tools and equipment to perform his job and that he was not required to purchase any tools or equipment. (See DUMF Nos. 36-37.) However, Plaintiff testified that he was required to purchase his own lockout kit. (See PUMF No. 77.) This conflicting testimony demonstrates a triable issue of material fact as to whether Plaintiff was required to purchase the lockout kit.

In reply, Defendants

contend that their "evidence establishes that lockout kits were available from Defendants and that Plaintiff was not required by the employer to purchase his own." (Reply, p. 7:22-23.) However, the Court's role is not to decide such disputed factual issues. (See *Hinesley v. Oakshade Town Center* (2005) 135 Cal.App.4th 289, 294.) It is for the jury to decide what factual conclusions are to be drawn from the conflicting evidence presented.

Plaintiff has put forth evidence to create a triable issue of material fact as to whether he was required to purchase tools and equipment for his job for which he was allegedly not reimbursed. Accordingly, summary adjudication of this cause of action is denied. (See Code Civ. Proc., § 437c, subd. (p)(2).)

IV.

Wage

Statement Penalties (Cause of Action No. 4)

The Court finds that there is a triable issue of material fact as to whether Defendants provided Plaintiff with accurate wage statements.

Labor Code section 226, subdivision (a), requires employers to furnish accurate, itemized wage statements reflecting, among other things, gross and net wages earned, hours worked, and applicable pay rates.

“[A]n employer’s objectively reasonable, good faith belief that it has provided employees with adequate wage statements precludes an award of penalties under section 226, subdivision (e)(1). An employer that believes reasonably and in good faith, albeit mistakenly, that it has complied with wage statement requirements does not fail to comply with those requirements knowingly and intentionally.” (Naranjo v. Spectrum Security Services, Inc. (2024) 15 Cal.5th 1056, 1087.)

Here, this cause of action is derivative of Plaintiff’s meal and rest break causes of action. The Court has already determined that Plaintiff’s meal and real break causes of action survive summary adjudication. (See §§ I-II.) As follows, this cause of action must also survive summary adjudication. Therefore, there is a triable issue of material fact as to whether Defendants provided Plaintiff with accurate wage statements and knew that statements were inaccurate.

Accordingly, summary adjudication for this cause of action is denied. (See Code Civ. Proc., § 437c, subd. (p)(2).)

V.

Waiting

Time Penalties (Cause of Action No. 5)

The Court finds that there is a triable issue of material fact as to whether Defendants willfully failed to timely pay Plaintiff all due meal and rest break premiums.

Labor Code section 226.7

requires employers to pay employees one additional hour of pay at their regular rate of compensation for each workday on which a compliant meal or rest break is not provided. Waiting time penalties are available under Labor Code section 203 if an employer willfully fails to timely pay this required additional compensation upon an employee's separation. (Lab. Code, § 203; *Naranjo v. Spectrum Security Services, Inc.* (2022) 13 Cal.5th 93, 101-02.)

Here, this cause of action is derivative of Plaintiff's meal and rest break causes of action. The Court has already determined that Plaintiff's meal and rest break causes of action survive summary adjudication. (See §§ I-II.) As follows, this cause of action also survives summary adjudication.

Defendants contend they did not willfully fail to timely pay all meal and rest break premiums because they reasonably relied upon Plaintiff's signed Driver Logs and Payroll Ledger Lunch Signup Sheet. (See MSJ, p. 19:10-23.) These sheets and Driver Logs confirmed that Plaintiff received all his meal and rest breaks during each relevant pay period. (See *ibid.*) However, as discussed above, there is a triable issue of material fact as to whether Defendants knew about the Driver Log's inconsistencies and Plaintiff's off-the-clock work. (See § I.) Accordingly, since these Driver Logs formed the basis of Plaintiff's paycheck, there is also a triable issue of material fact as to whether Defendants knew they were not paying Plaintiff all due meal and rest break premiums and therefore acted willfully.

For these reasons, summary adjudication for this cause of action is denied. (See Code Civ. Proc., § 437c, subd. (p)(2).)

VI.

Violation
of Unfair Competition Law (Cause of Action No. 6)

A claim under Business and Professions Code section 17200 that is premised on alleged Labor Code violations rises or falls with the viability of those underlying statutory claims. (See *Aleksick v. 7-Eleven, Inc.* (2012) 205 Cal.App.4th 1176, 1185.)

Here, this cause of action is derivative of Plaintiff's meal and rest break causes of action. The Court has already determined that Plaintiff's meal and real break causes of action survive summary adjudication. (See §§ I-II.) As follows, this cause of action also survives summary adjudication.

Accordingly, summary adjudication for this cause of action is denied.

VII.

Private

Attorneys General Act ("PAGA") (Cause of Action No. 7)

A claim arising under PAGA rises or falls with the viability of an underlying Labor Code violation. (See *Kim v. Reins International California, Inc.* (2020) 9 Cal.5th 73, 83–84.)

Here, this cause of action is derivative of Plaintiff's meal and rest break causes of action. The Court has already determined that Plaintiff's meal and real break causes of action survive summary adjudication. (See §§ I-II.) As follows, this cause of action must also survive summary adjudication.

Accordingly, summary adjudication for this cause of action is denied.

VIII. The Motion Is Denied as to Each Defendant

Defendants argue in their reply brief that the individual Defendants and Defendant Kam's Property, LLC are entitled to judgment even if the claims survive as to Defendant Kam's

Automotive, Inc. However, Defendants did not this set out in their notice of motion as a basis for the motion. There is no differentiation between the Defendants in what is requested in the notice of motion. Nor are there supporting facts specific to each Defendant in the supporting separate statement. Defendants bear the initial burden on a motion for summary judgment, as set forth above, and Defendants have not made a sufficient showing to justify summary judgment on behalf of any Defendant.

CONCLUSION

For the foregoing reasons,
Defendants' Motion for Summary Judgment or, in the Alternative, Summary Adjudication,
is DENIED.